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emphasized that the statute “set[] forth the scope of the inspection and, accordingly, place[d] the operator on notice as to how to comply with the statute.”⁵²

Those cases control. They require statutory notice. So the *Burger* exception’s notice element is clearly established. And the Texas laws don’t provide notice for on-demand inspections.

For that reason, the limited-discretion requirement shouldn’t matter. The notice requirement would govern. No matter how you shake it, the officials shouldn’t be immune.

III

Yet here we are—Dr. Zadeh still loses; there and back again. Everyone agrees his Fourth Amendment rights were violated. But owing to a legal *deus ex machina*—the “clearly established” prong of qualified-immunity analysis—the violation eludes vindication. At first I agreed with the panel majority that the government violated the law but not *clearly established* law. I was wrong. Beyond this case, though, I must restate my broader unease with the real-world functioning of modern immunity practice.

To some observers, qualified immunity smacks of unqualified impunity, letting public officials duck consequences for bad behavior—no matter how palpably unreasonable—as long as they were the *first* to behave badly. Merely proving a constitutional deprivation doesn’t cut it; plaintiffs must cite functionally identical precedent that places the legal question “beyond debate” to “every” reasonable officer.⁵³ Put differently, it’s immaterial that someone acts unconstitutionally if no prior case held such misconduct unlawful. This

⁵² 482 U.S. at 711.

⁵³ *Ashcroft*, 563 U.S. at 741; *see also, e.g., Kisela v. Hughes*, 138 S. Ct. 1148, 1153 (2018) (per curiam); *Mullenix v. Luna*, 136 S. Ct. 305, 308 (2015) (per curiam).